

3. HAMILTON v. HEAVENLY VALLEY LIMITED PARTNERSHIP, SC20210148**Motion to Stay or Dismiss**

On November 18, 2025, pursuant to Code of Civil Procedure section 410.30, intervenors Randy Dean Quint, John Linn, and Mark Molina (collectively, the “Colorado Plaintiffs”) filed a motion to stay or dismiss the instant action based on the doctrine of forum non conveniens.²

On January 12, 2026, plaintiffs Christopher Hamilton, Anna Gibson, Zachariah Saiz-Hawes, William Berrier, Matthew Allen, Adam Heggen, and Paul Roberds (collectively, the “Opposing Plaintiffs”), and defendants The Vail Corporation and Heavenly Valley (collectively, “Defendants”) filed their respective oppositions.

On February 13, 2026, the Colorado Plaintiffs filed a timely reply.

1. Preliminary Matter

On September 22, 2025, the court denied the Colorado Plaintiffs’ motion to dismiss filed April 18, 2025. Opposing Plaintiffs and Defendants both contend that the instant motion is procedurally barred. Defendants claim the motion is actually a motion for reconsideration and is therefore barred under Code of Civil Procedure section 1008;³ and Opposing Plaintiffs claim, without citing any relevant legal authority, that the Colorado Plaintiffs waived their argument of forum non conveniens by failing to raise it in their previous motion to dismiss.

² The hearing on this motion has been continued a few times based upon stipulation of the parties.

³ Code of Civil Procedure section 1008 provides in pertinent part: “A party who originally made an application for an order which was refused in whole or part, ... may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case, it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (b).)

In *Williamson v. Mazda Motor of America, Inc.* (2012) 212 Cal.App.4th 449 (*Williamson*), the court held that “[Code of Civil Procedure] section 410.30, subdivision (a) grants a trial court independent authority to determine whether California is a convenient forum” based on evidence not previously presented to the court, “even if a party's forum non conveniens motion does not otherwise satisfy the requirements of section 1008 for reconsideration of a prior order or renewal of an earlier motion.” (See *Williamson, supra*, at pp. 452–454.)

The court notes that the Colorado Plaintiffs’ previous motion to dismiss did not request a stay and did not raise the issue of forum non conveniens.⁴ The only portion of the instant motion that seeks the same relief is the request for dismissal. However, pursuant to *Williamson*, the Colorado Plaintiffs’ instant motion under Code of Civil Procedure section 410.30, subdivision (a) is not barred under Code of Civil Procedure section 1008.

2. Request for Judicial Notice

Defendants request the court to take judicial notice of 29 documents. However, pursuant to Evidence Code section 452, the court denies the request because said materials are not “necessary, helpful, or relevant” to the instant motion. (See *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6.)

3. Legal Principles

Code of Civil Procedure section 410.30 provides: “When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (Code Civ. Proc., § 410.30, subd. (a).) “The statute codifies the common law doctrine of forum non conveniens.” (*St. Paul Fire &*

⁴ In their previous motion to dismiss, the Colorado Plaintiffs attempted to argue forum non conveniens for the first time in their reply brief. However, the court did not consider this argument because it was not properly raised in their moving papers.

Marine Ins. Co. v. AmerisourceBergen Corp. (2022) 80 Cal.App.5th 1, 13.) “Forum non conveniens is an equitable doctrine invoking the discretionary power of a court to decline to exercise the jurisdiction it has over a transitory cause of action when it believes that the action may be more appropriately and justly tried elsewhere.” (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.) “The doctrine of forum non conveniens is not jurisdictional.”⁵ (*Credit Lyonnais Bank Nederland, N.V. v. Manatt, Phelps Rothernberg & Tunney* (1988) 202 Cal.App.3d 1424, 1430–1431, fn. 8, superseded by statute on another point by *Beckman v. Thompson* (1992) 4 Cal.App.4th 481, 487, fn. 4.)

“In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a ‘suitable’ place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California.” (*Stangvik, supra*, 54 Cal.3d at p. 751.) “The trial court’s first determination, whether there is a suitable forum, is a nondiscretionary legal question subject to de novo review. [Citations.] The second determination, the weighing of the private and public factors, is discretionary and subject to review only for an abuse of discretion....” (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1464.)

4. Discussion

“A forum is suitable if there is jurisdiction and no statute of limitations bar to the action. It is sufficient that the action can be brought, although not necessarily won, in the suitable alternative forum.” (*Morris, supra*, 144 Cal.App.4th at p. 1464.)

The court notes that the Colorado Plaintiffs’ request to stay or dismiss this action based on forum non conveniens would have the result of litigating this case in the federal district court in Colorado. However, this court does not have the authority to

⁵ The Colorado Plaintiffs’ arguments regarding this court’s jurisdiction over the dispute have already been ruled upon and are immaterial to the issue of forum non conveniens.

directly consolidate the instant case with the Colorado action; that would require a separate motion. Defendants' arguments regarding the scope of the pending Colorado action (Defs.' Opp. at 10:6–16) is not relevant to the initial question in this forum non conveniens analysis of whether the federal district court in Colorado is a suitable forum.

Federal courts have two different sources of subject matter jurisdiction as relevant here. Diversity jurisdiction arises when opposing parties are citizens of different states (28 U.S.C. § 1332), and federal question jurisdiction gives the federal courts jurisdiction if the action arises under federal law (28 U.S.C. § 1331). If the federal court has subject matter jurisdiction, it may also exercise supplemental jurisdiction over related claims that would not otherwise have been within the federal court's jurisdiction. (28 U.S.C. § 1367.)

The Colorado Plaintiffs' briefing does not expressly articulate why it contends the federal district court in Colorado would have federal subject-matter jurisdiction over the instant case, which asserts California state law claims only.⁶ Presumably, the Colorado Plaintiffs' position is that the federal district court has federal diversity jurisdiction under 28 U.S.C. § 1332.

However, diversity jurisdiction requires "complete" diversity between the plaintiffs and defendants. (See *Owen Equipment & Erection Co. v. Kroger* (1978) 437 U.S. 365, 373 ("diversity jurisdiction does not exist unless *each* defendant is a citizen of a different State from each plaintiff.").)

In this case, both Defendants are incorporated or have their principal place of business in Colorado. Each of the Opposing Plaintiffs is domiciled in California. But, the Colorado Plaintiffs are all domiciled in Colorado. Because there is not complete diversity, the federal district court in Colorado does not have federal diversity

⁶ On this point, the Colorado Plaintiffs' opening brief merely states, "Here, the 'alternate forum' i.e. the DOC 'is a "suitable" place for trial' because Vail is headquartered in Colorado and the 'principal place of business [] is presumptively a convenient forum.' [Citation.]" (Mtn. at 4:3–5.)

jurisdiction, and is therefore not a suitable forum. Accordingly, the motion to stay or dismiss this action based on forum non conveniens is denied.

In the alternative, even if the federal court in Colorado were a suitable forum, the court would still find that the balancing of private and public interest factors do not weigh in favor of trying the case in the federal court in Colorado.

“The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (*Stangvik, supra*, 54 Cal.3d at p. 751.)

The Colorado Plaintiffs claim the applicable factors favor trying the instant case in the federal court in Colorado because: (1) Vail is headquartered in Colorado; (2) the unlawful employment policies, practices, and procedures were formulated and implemented in Colorado; (3) key witnesses and evidence are located in Colorado; and (4) Vail is subject to general jurisdiction in Colorado. (Mtn. at 1:9–13.) Additionally, the Colorado Plaintiffs claim the Colorado action pleads the broadest claims and is the most advanced. (Mtn. at 1:13–14.)

The claims in the instant case are California state law wage and hour claims. The Colorado Plaintiffs’ motion makes the blanket claim that key witnesses and evidence are located in Colorado but they cite to no evidence in support of this claim. Even if employment policies and practices were formulated in Colorado, it appears that the relevant business records (e.g., timesheets, etc.) would largely be located in California.

Lastly, the Colorado Plaintiffs claim the Colorado action pleads the broadest claims and is the most advance. However, the court notes that a settlement remains pending in the instant case.

TENTATIVE RULING # 3: THE COLORADO PLAINTIFFS' MOTION TO STAY OR DISMISS UNDER CODE OF CIVIL PROCEDURE SECTION 410.30 IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.